

25SMCV06695 25SMCV06695

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-14

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TENTATIVE RULING

Plaintiff Elias Vazquez's Motion for Attorney Fees, Costs and Expenses is GRANTED in the reduced amount of \$7,555.50, consisting of \$7,000 in attorney fees and \$555.50 in costs.

Plaintiff Elias Vazquez to give notice.

The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Reg'l Planning Comm'n (1982) 134 Cal.App.3d 999, 1004.)

Defendant argues that there is no basis to award \$18,829.71 to Plaintiff, which includes \$18,220.00 in fees and \$609.71 in costs. The Court has reviewed the motion and the billing sheets provided and finds that the requested fees are excessive and must be reduced.

The Court also reduces the hours to reduce initial case assessment time of 4.2 hours (\$1,890); reduce time spent preparing initial disclosures by 0.7 hours (\$315); reduce time reviewing Defendant's document production by 3.4 hours (\$1,530); reduce time spent on tasks relating to Plaintiff's deposition by 3.9 hours (\$1,395); omit time spent on tasks relating to Defendant's Person Most Knowledgeable deposition by 2.6 hours (\$1,050); reduce time relating to client communications by 5.3 hours (\$2,385); omit time spent on clerical tasks by 4.6 hours (\$2,070); omit time spent surrendering the vehicle by 0.5 hours (\$225); and reduce time spent on this motion by 0.8 hours (\$360). Thus, the Court reduces the total amount of attorney fees requested by \$11,220. As to costs, Defendant argues that \$54.21 in costs are not substantiated. While the memorandum of costs does not explain these "other costs," Plaintiff states in the motion that the costs relate to One Legal e-filing and service charges. (Mot., p. 10, l. 4.) However, Plaintiff seeks costs elsewhere in the memorandum of costs for filing and motion fees and fees for electronic filing of service, and the onus is not on the Court to determine which invoices support this amount, making it such that this \$54.21 cost remains unsubstantiated, warranting a reduction in costs of \$54.21. Accordingly, Plaintiff Elias Vazquez's Motion for Attorney Fees, Costs and Expenses is GRANTED in the reduced amount of \$7,555.50, consisting of \$7,000 in attorney fees and \$555.50 in costs.